



File No.: EXP202315025

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 17/10/2021, a document was submitted to this Spanish Agency for Data Protection by A.A.A. (hereinafter, the complainant), in which a complaint is made against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system in two parking spaces located at ***ADDRESS.1, with indications of a possible violation of personal data protection regulations.

The reasons supporting the complaint are as follows:

"In the garage of the community of owners ***COMMUNITY.1, without any agreement in a meeting (...), Mr. B.B.B. and Ms. C.C.C., without authorization, have installed 4 video surveillance cameras to monitor the access and movement of vehicles and pedestrians around their parking spaces.

Above the parking spaces, three cameras are located: one focuses from the vehicle towards the common passage area, another in a zenithal plane towards the vehicle, and the third, from the front to the wall, where there is a door leading to the building.

The fourth camera is located above the parking space (...), which is situated directly opposite the space in question, with the community's vehicle and pedestrian passage area in between, and it also allows for monitoring of the individuals entering and exiting through the access door to the residences, located to the right.

[...]

The video surveillance sign does not inform who is responsible for the installation, nor to whom rights can be exercised or the retention period of the images."

Attached are 4 photographs of the location of the video surveillance cameras.

SECOND: On 27/12/2021, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the complaint submitted by the complainant was admitted for processing.

THIRD: On 02/03/2022, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure, (...), against the respondent, for the alleged violations of Articles 5.1.c) and 13 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR), classified in Article 83.5 a) and b) of the GDPR.

This initiation agreement was attempted to be notified via postal mail, resulting in "Returned to sender due to Unknown," according to the notice issued by Correos on 11/03/2022. Thus, the notification was made through an announcement published in the Official State Gazette on 29/03/2022, and a TEN WORKING DAYS period was granted for the respondent to submit allegations and present any evidence deemed appropriate, in accordance with the provisions of Articles 73 and 76 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

FOURTH: The respondent did not submit allegations to the initiation agreement of this sanctioning procedure.

In accordance with Article 64.2.f) of the LPACAP, on 22/04/2022, the Director of the Spanish Agency for Data Protection issued a resolution imposing two administrative fines of €300 each on the respondent for the violations of Article 5.1.c) and 13 of the GDPR, classified in Article 83.5.a) and b) of the GDPR.

Additionally, the respondent was ordered, within ten working days from the notification of the resolution, to prove that they had proceeded to remove the cameras from the current location, or to reorient them towards their private area; to place the informative sign in the video-monitored areas in a sufficiently visible location and to keep available to the affected individuals the information referred to

in the aforementioned GDPR.

FIFTH: On 16/02/2023, this Agency received a document submitted by a third party stating the following:

"I (...), with ID number (...) and with postal address (...) have received from the Spanish Agency for Data Protection a summons with description (...) where the person identified as liable for payment of said sanction is another person who is not me and another postal address, whose name or corporate name is: B.B.B. to whom my ID number has been assigned and whose address is ***ADDRESS.1. (...) I am informed that a previous notification could not be delivered to me (...) because the address does not exist, therefore it is not explained how it comes to me additionally, with a surcharge. I request to resolve the incident as I am not the person referred to in the summons, therefore I am not obliged to pay it. (...)"

SIXTH: On 13/03/2023, the Director of the Spanish Agency for Data Protection issued a resolution revoking the Resolution of the sanctioning procedure (...), as it was understood that this Agency acted erroneously following a deficient identification of the subject against whom the complaint was directed.

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by the claiming party. Thus, "after verifying the DNI verification system of this Agency, an error is noted in the assignment of DNI ***NIF.2 to the claimed party, B.B.B., as it corresponds to another person."

SEVENTH: On 22/11/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the claimed party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violations of Articles 5.1.c) and 13 of the GDPR, classified under Article 83.5.a) and b) of the GDPR. This initiation agreement was notified in accordance with the rules established in the LPACAP through an announcement published in the Official State Gazette (hereinafter, BOE) on 14/12/2023.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the claimed party.

NINTH: On 04/09/2024, the instructor of the procedure issued a proposed resolution in which it was proposed to impose a fine of €600 on the claimed party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the violations of Articles 5.1.c) and 13 of the GDPR, classified under Article 83.5.a) of the GDPR, indicating that they had a period of ten days to submit allegations.

Furthermore, in the aforementioned proposed resolution, it was suggested that, pursuant to Article 58.2.d) of the GDPR, within one month from the date on which the resolution agreeing to this is notified, they must demonstrate compliance with the following measures:

- To have proceeded with the removal of the cameras from the current location or to demonstrate the regularization of the same in accordance with current regulations.
- To have proceeded with the placement of the information device in the monitored areas (it must identify, at least, the existence of a processing operation, the identity of the controller, and the possibility of exercising the rights provided for in those provisions), placing this device in a sufficiently visible location, both in open and closed spaces. Also, that they maintain the information referred to in Articles 13 and 14 of the GDPR available to those affected.

This proposed resolution was notified in accordance with the rules established in the LPACAP through an announcement published in the BOE on 02/10/2024.

TENTH: Once the aforementioned proposed resolution was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the claimed party.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

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PROVEN FACTS

FIRST: Installation of 4 surveillance cameras in two parking spaces ((...) and the one located in front), located at ***COMUNIDAD.1, ***DIRECCIÓN.1; oriented towards the common passage area for vehicles and pedestrians.

This fact is proven with the photographic report provided by the claiming party.

SECOND: Existence of a sign placed on the column of the parking space located in front of parking space number (...) that contains the following text: "Surveillance and recording camera."

This fact is proven with the photographic report provided by the claiming party.

THIRD: The responsible party for the installed surveillance system is the claimed party, B.B.B. with NIF ***NIF.1.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Image as personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

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It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions established in the GDPR.

III

Data Minimization

Article 5.1(c) of the GDPR states the following:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')"

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities. However, the capture of images from public roads is only permitted to the extent that it is essential for the aforementioned purpose.

Under no circumstances shall the use of surveillance practices extend beyond the area subject to the

installation and, in particular, shall not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

In this case, upon reviewing the documentation in the administrative file, it is evident that a video surveillance system has been installed in two parking spaces ((...) and the one located opposite), situated in ***COMMUNITY.1, ***ADDRESS.1. Due to the height and orientation, the field of vision of the 4 video surveillance cameras covers different common passage areas for vehicles and pedestrians, and not just the parking spaces in question; thus resulting in disproportionate capture. Consequently, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the party being claimed, for violation of Article 5.1(c) of the GDPR.

IV

Classification and Qualification of the Infringement of Article 5.1(c) of the GDPR

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The aforementioned infringement of Article 5.1(c) of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which, under the heading “General conditions for the imposition of administrative fines,” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that: “In accordance with what is provided in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679; (...)”

V

Sanction for the Infringement of Article 5.1(c) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1(c) of the GDPR allows for the imposition of an administrative fine of 300€ (three hundred euros).

VI

Transparency of Personal Data Processing

Article 5 of the GDPR “Principles relating to processing” indicates that:

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (‘lawfulness, fairness, and transparency’).”

This principle is further developed in Article 12 of the GDPR and, depending on whether the personal data is obtained from the data subject themselves or not, the information that must be provided is enumerated in Articles 13 or 14 of the GDPR.

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Regarding the processing for the purposes of video surveillance, Article 22.4 of the LOPDGDD states that:

“The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device.

In any case, the controller must keep the information referred to in the aforementioned regulation available to the affected parties.”

In this case, the claimant warns in their complaint that “the video surveillance sign does not inform who is responsible for the video surveillance installation, nor to whom rights can be exercised or the retention period of the images.” In this regard, the photographic report provided by the claimant only shows a sign placed on one of the columns of the parking lot indicating “Video surveillance camera recording,” failing to adequately inform about all the issues required by current regulations.

Furthermore, it is also not evident that the respondent has the rest of the information that the personal data protection regulations enumerate available to the individuals affected by the image capture carried out by the devices.

Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 13 of the GDPR.

VII

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR which, under the heading “General conditions for the imposition of administrative fines,” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...)”

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For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that: “Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

VIII

Sanction for the infringement of Article 13 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance

with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 13 of the GDPR, allows for the imposition of an administrative fine of 300€ (three hundred euros).

IX

Adoption of measures

In accordance with the provisions of Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”, the respondent is required to notify this Agency within one month of the adoption of the following measures:

- To have proceeded to remove the cameras from the current location or to certify their regularization in accordance with current regulations.
- To have proceeded to place the informative device in the monitored areas (it must identify, at least, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), locating this device in a sufficiently visible place, both in open and closed spaces. Also, to ensure that the information referred to in Articles 13 and 14 of the GDPR is available to the affected parties.

The imposition of these measures is compatible with imposing an administrative fine, as provided in Article 83.2 of the GDPR.

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It is warned that failure to comply with the possible order for the adoption of measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for:

- An infringement of article 5.1.c) of the GDPR, classified in article 83.5 of the GDPR, an administrative fine of €300 (three hundred euros).
- An infringement of article 13 of the GDPR, classified in article 83.5 of the GDPR, an administrative fine of €300 (three hundred euros).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to prove compliance with the following measures:

- To have proceeded with the removal of the cameras from the current location or to prove the regularization of the same in accordance with current regulations.
- To have proceeded with the placement of the informative device in the monitored areas (it must identify, at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in said provisions), placing this device in a sufficiently visible location, both in open and closed spaces. Also, to maintain the information referred to in articles 13 and 14 of the GDPR available to those affected.

THIRD: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of the LPACAP, within the

voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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